

1	Doe vs. Roe Counselor 30-2022-01291594	<u>Demurrer</u> Defendant Huntington Beach City School District's Demurrer to Plaintiff's First Amended Complaint is OVERRULED as to the 1st Cause of Action, and SUSTAINED with 21 days leave to amend, as to the 3rd, 5th, 6th, and 7th Causes of Action. If Plaintiff John Doe does not amend the First Amended Complaint within the period in which leave to amend is granted, Defendant Huntington Beach City School District shall file an answer or other pleading in response to the First Amended Complaint within 10 days of the expiration of the period to amend. (See Cal. Rules of Ct. rule 3.1320(j).) Defendant Huntington Beach City School District (Defendant School District) demurs to the First Amended Complaint (FAC) filed by Plaintiff John Doe. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Because a demurrer tests only the sufficiency of the pleading, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . [and] consider[s] matters which may be judicially noticed." (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Thus, in ruling on a demurrer to a complaint, a court must accept as true all allegations of fact contained in the complaint, (see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318), and will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice, (see <i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.)
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		1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) Defendant School District asserts that the court should not grant leave to amend in light of Plaintiff's concession as to the to the 3rd, 5th, 6th, and 7th Causes of Action. However, Plaintiff did not concede that these claims could not be amended. Further, this is the first time that the court has sustained a demurrer to these causes of action. Therefore, the court will grant leave to amend as to the to the 3rd, 5th, 6th, and 7th Causes of Action. Defendant School District shall give notice of this ruling.
2	Escamilla vs. Suchard 30-2022-01282888	<u>Motion for Leave to Amend</u> Defendant Talmor Suchard's Motion for Leave to File First Amended Answer is GRANTED. Defendant Talmor Suchard shall file and serve the First Amended Answer by September 27, 2023. Defendant Talmor Suchard moves for leave to file a First Amended Answer in this action. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.